

with discovery including taking key witness depositions. Raven Decl., ¶ 21; Cal. Rules of Ct., Rule 3.1332(c)(6). Moreover, she notes, specifically: this is the first request to continue trial; she seeks a brief continuance to allow for the depositions to occur in April, as well as to allow for Plaintiff's counsel's unavailability due to a preferentially set trial in Placer County beginning April 13, 2026; no other means exist to accomplish Plaintiff's goal to fully and fairly to present her case; the interests of justice will be served by the requested relief because the continuance of trial and related deadlines will allow Plaintiff to complete essential discovery and allow her experts sufficient time to review testimony and formulate complete opinions; Defendants will not be prejudiced because a continuance will allow all parties to complete remaining discovery in an orderly manner; and granting the continuance will promote judicial efficiency. Raven Decl., ¶¶ 23-27; Cal. Rules of Ct., Rule 3.1332(d)(1)-(2), (4)-(5), (8), (10).

Based on the moving papers and declaration submitted in support thereof, the Court finds a good cause to grant the request. However, the Court requires parties to appear in that the moving papers do not contain any information as to the requested length of the continuance, or the parties' availability.⁴

6. CU0001901 Heather Miles v. Michael Smallwood

Plaintiff Heather Miles' unopposed motion to deem matters admitted and for imposition of sanctions is granted. Defendant Michael Smallwood is ordered to pay Plaintiff \$2,810.00 in sanctions within 30 days.

Request to Deem Matters Admitted

A party may move for an order deeming her Requests for Admission ("RFAs") admitted if the party to whom they are directed has failed to serve a timely response. Code Civ. Proc. § 2033.280(b). "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." Code Civ. Proc. § 2033.280(c). Responses are due within 30 days after service of the discovery. Code Civ. Proc. §2033.250(a). Response time is extended by manner of service. Code Civ. Proc. § 2016.050. Service by mail extends the deadline by 5 calendar days. Code Civ. Proc. § 1013(a).

At bar, Plaintiff served her RFAs on November 17, 2025 by mail, making December 22, 2025 the deadline for Defendant to serve a timely response. Batista Decl., ¶ 2. Plaintiff has not received any response from Defendant, nor has Defendant responded to any meet and confer attempts. Batista Decl., ¶¶ 2-3. Therefore, The matters specified in Plaintiff's RFAs are deemed admitted, unless defendant serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure Section 2033.220.

⁴ The Court is cognizant of the concerns noted by Defendant Streit in its response with respect to the increased MICRA cap effective next year.

Request for Sanctions

“It is mandatory that the court impose a monetary sanction ... on a party ... whose failure to serve a timely response to the [RFAs] necessitated this motion.” Code Civ. Proc. § 2033.280(c). Unlike the analogous provisions for other discovery motions, this subdivision makes no exception for a responding party who acted with substantial justification. *Compare, e.g.*, Code Civ. Proc., §§ 2030.290(c), 2031.300(c). Defendant failed to serve timely responses to plaintiff’s RFAs. His failure to do so necessitated plaintiff’s motion; thus, sanctions are required.

Plaintiff requests \$2,750.00 in attorney’s fees and anticipated costs of \$100 and submits a declaration in support thereof. The Court finds the requested fees are reasonable and grants the same as prayed. Costs are also awarded for the \$60 filing fee. Total fees and costs of \$2,810.00 shall be paid within 30 days of service of the final order.

7. CU0001972 Cynthia Carter vs. Stone House, LLC, et al.

Defendants Stone House, LLC, Thriving Lifestyles, LLC, and Jonathan Rowe’s motion to quash service of summons and vacate previously entered defaults as to each is granted.

Request for Judicial Notice

Plaintiff’s requests for judicial notice of Exhibits 1 and 2 are denied. Exhibits 1 and 2 are *printouts* from the California Secretary of State’s website. A court may *not* take judicial notice of the *factual content* of a website. *Searles Valley Minerals Operations, Inc. v. State Board of Equalization* (2008) 160 Cal.App.4th 514, 519. Additionally, the Secretary of State’s website itself warns, “Although every attempt has been made to ensure that the information contained in the database is accurate, the Secretary of State’s office is not responsible for any loss, consequence, or damage resulting directly or indirectly from reliance on the accuracy, reliability, or timeliness of the information that is provided. All such information is provided ‘as is.’” Therefore, the documents do not qualify for judicial notice under Evidence Code section 452(h); they are not facts that “are not reasonably subject to dispute” or “capable of immediate and accurate determination.”

Legal Standard For Motion to Quash

“Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.” *AO Alfa-Bank v. Yakovlev* (2018) 21 Cal.App.5th 189, 202. “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential.” *Kremerman v. White* (2021) 71 Cal.App.5th 358, 371. Defendant’s knowledge of the action does not dispense with statutory requirements for service of summons. *Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457, 1466.) On the other hand, “[S]trict compliance with statutes governing service of process is not required. Rather, in deciding whether service was valid, the statutory provisions regarding service of process should be liberally construed to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant.” *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 410-411.